

Present:

Mr. Justice Md. Shohrowardi

Criminal Revision No. 4884 of 2024

Mst Joshna Begum

...Convict-petitioner

-Versus-

The State and another

...Opposite parties

No one appears.

...For the convict-petitioner

No one appears.

...For the complainant-opposite party No. 2

Heard on 30.10.2024

Judgment delivered on 30.10.2024

On an application filed under Section 439 read with Section 435 of the Code of Criminal Procedure, 1898 Rule was issued calling upon the opposite parties to show cause as to why the order dated 07.08.2024 passed by the Joint Metropolitan Sessions Judge. Court No. 3, Dhaka in Metropolitan Session Case No. 14675 of 2019 arising out of C.R Case No. 636 of 2018 rejecting the application for bail of the convict-petitioner under Section 426(2A) of the Code of Criminal Procedure, 1898 to file an appeal against judgment and order of conviction and sentence dated 14.05.2024 convicting the petitioner under section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for 6(six) months and fine of Tk. 15,00,000 (fifteen lakhs) should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

No one appears on behalf of the convict-petitioner.

At the time of issuance of the Rule, the learned Advocate Mr. Md. Arif Hossain Talukder referred a decision made in the case of Sajjad Hossain Vs. Md. Lutful Hasan and another passed in Criminal Petition for Leave to Appeal Nos. 55-58 of 2023 judgment dated 04.04.2023 and considering the said decision of our Apex

Court, this Court issued Rule on 20.08.2024 and granted bail to the convict-petitioner for a limited period of 2(two) months. In the said case, it has been held that;

“From the discussions made above and the principles enunciated in the cited cases, our view is that there are specific provisions in Sections 426 and 435 of the Code of Criminal Procedure for bail of a convicted person and if bail petition filed by a convicted person under Section 426(2A) of the Code of Criminal Procedure is rejected, then the remedy lies under Section 435 of the Code of Criminal Procedure in “Revisional Jurisdiction”.”

After that, the Appellate Division in the case of Pubali Bank Limited Vs. Chowdhury Shamim Hamid and another, Criminal Petition for Leave to Appeal Nos. 1059-1061 of 2024 judgment dated 11.06.2024 it has been held that;

“It is manifest from the overall reading of the Negotiable Instruments Act that the legislature inserted the provision of deposit of 50% of the total cheque money before preferring an appeal in the Negotiable Instruments Act only to streamline the process of recovery of cheque money so that no person can deceive another as regards transactions over cheque. Therefore, the pre-condition of depositing 50% of the total cheque money while preferring appeal as enshrined in Section 138A of the Negotiable Instruments Act cannot be given a go-bye which according to the principle of interpretation of statute must be adhered to. The High Court Division is not given such latitude to allow a convict under Section 138(1) of the Negotiable Instruments Act to go on bail for some period on condition of preferring

appeal against the sentence without depositing 50% of the total cheque money before preferring appeal. But the High Court Division by the impugned orders misconstrued the provisions of Section 138A of the Negotiable Instruments Act and as such those call for interference by this Division.”

In view of the above ratio decidendi adopted in Criminal Petition for Leave to Appeal Nos. 1059-1061 of 2024 the instant Rule is not maintainable in law. At the time of issuance of the Rule, the learned Advocate did not refer the decision made in the Criminal Petition for Leave to Appeal Nos. 1059-1061 of 2024 and suppressing the above judgment passed by our Apex Court obtained the Rule.

In the result, the Rule is discharged.

However, there will be no order as to costs.